HIGH COURT OF GUJARAT AT AHMEDABAD

APPELLATE JURISDICTION · SINGLE JUDGE

Criminal Misc. Application No. 4512 of 2023 **CNR: GHC010045122023**

Date: 01 July, 2023 *Citation: 2023:GHC:4512*

CORAM: Hon'ble Nirzar S. Desai, J.

Petitioner: Teesta Atul Setalvad

- VERSUS -

Respondent: State of Gujarat

DOMAIN: CRIMINAL LAW & QUASHING U/S 482 **STATUS: Distinguished on Facts (Supreme Court granted bail)**

JUDICIAL RATIO DECIDENDI & OPERATIVE HOLDING:

Where an accused is alleged to have fabricated evidence to implicate innocent persons in capital offences, seriousness of offence outweighs personal liberty at the prima facie stage. [Modified by Supreme Court on appeal in 2023 granting regular bail].

STATUTES APPLIED: Section 482 CrPC, Section 194 IPC, Section 211 IPC, Section 468 IPC

DISPOSITION: BAIL REJECTED WITH DIRECTION TO SURRENDER (OVERTURNED BY SC)

EXECUTIVE RATIO SUMMARY:

Detailed consideration of prima facie offences of fabricating false evidence to secure capital conviction. High Court refused regular bail, though Supreme Court subsequently granted bail observing applicant was on interim bail without violating conditions.

LEXGUARD CRYPTOGRAPHIC VERIFICATION SEAL · SECTION 65B ADMISSIBLE

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